



ADULT STRENGTH

Participant Agreement, Assumption of Risk & Release

Editable liability waiver template

DRAFT TEMPLATE - NEW MEXICO ATTORNEY REVIEW REQUIRED BEFORE USE

Important: This document is a business drafting template, not legal advice. Complete all bracketed business details and have a licensed New Mexico attorney review and approve the final language, signing process, and record-retention procedure before any client signs it.

Legal business name	[LEGAL BUSINESS NAME]
Trade name	Momentum Wellness
Business address	[BUSINESS ADDRESS]
Business email	[BUSINESS EMAIL]
Participant full name	
Date of birth	
Phone and email	
Emergency contact	
Emergency contact phone	

1. Program Activities

I voluntarily choose to participate in the Momentum Wellness "Adult Strength" program and related fitness, wellness, educational, accountability, nutrition-information, habit, and app-based activities (collectively, the "Program"). Program activities may include strength training, cardiovascular activity, mobility work, exercise demonstrations, self-directed workouts, progress tracking, and general wellness education completed at home, in a gym, outdoors, or at another location.

I understand that Momentum Wellness may provide general instruction and program structure remotely. Momentum Wellness does not control third-party facilities, equipment, surfaces, other people, or conditions where I choose to exercise.

2. Acknowledgment of Inherent Risks

I understand that physical activity involves inherent and other risks, whether or not all risks are foreseeable. These may include:

- Muscle soreness, strains, sprains, bruises, falls, and other musculoskeletal injuries.

- Cardiovascular stress, shortness of breath, dizziness, fainting, abnormal blood-pressure response, or other adverse physical responses.
- Equipment failure or misuse, environmental hazards, and the actions or negligence of third parties.
- Aggravation of a known or unknown condition and, in rare cases, severe injury, permanent disability, or death.

I knowingly and voluntarily accept the risks associated with participating in the Program.

3. Health and Medical Responsibility

I am responsible for deciding whether I am physically able to participate. I will provide accurate information on the Momentum Wellness Exercise Readiness & Consultation Form and will notify Momentum Wellness if my ability to exercise changes.

I understand that Momentum Wellness does not provide medical care, diagnosis, treatment, physical therapy, or individualized medical nutrition therapy. Program information is not a substitute for advice from a physician or other qualified healthcare professional.

I will obtain medical advice or clearance when appropriate. I will stop activity and seek appropriate help if I experience chest discomfort, fainting, severe or unusual shortness of breath, sharp pain, or another concerning symptom.

4. Participant Responsibilities

- Use safe exercise space and properly maintained equipment.
- Follow exercise instructions, demonstrations, and reasonable safety guidance.
- Choose an appropriate resistance, range of motion, and pace for my current ability.
- Avoid participating while impaired by alcohol, drugs, illness, or another condition that may make activity unsafe.
- Ask for clarification when an instruction is unclear and stop any activity that does not feel safe.
- Maintain control of my account credentials and avoid sharing private app information.

5. Release and Waiver Template

Attorney review required: The scope and enforceability of this section depend on New Mexico law and the final facts of the business. Do not use this section with clients until counsel approves it.

In consideration for being allowed to participate in the Program, I, for myself and for my heirs, personal representatives, and assigns, agree to release, waive, and hold harmless [LEGAL BUSINESS NAME], doing business as Momentum Wellness, and its owners, employees, contractors, coaches, representatives, successors, and assigns (the "Released Parties") from claims arising from the ordinary negligence of a Released Party in connection with my participation, to the fullest extent permitted by applicable law.

This template is not intended to release claims that cannot legally be waived, or claims arising from gross negligence, reckless conduct, or intentional misconduct. I understand that final enforceable language must be approved by Momentum Wellness legal counsel.

6. Emergency Assistance

If an emergency occurs during an in-person Momentum Wellness activity and I am unable to provide instructions, I authorize reasonable efforts to contact emergency services and my emergency contact. I understand that I am responsible for costs charged by emergency responders, healthcare providers, transportation providers, or facilities, except where the law requires otherwise.

7. No Guaranteed Results

I understand that individual results vary. Momentum Wellness does not guarantee weight loss, muscle gain, health outcomes, performance improvements, or any other specific result.

8. App, Messaging, and Privacy

I understand that the Program uses Trainerize and may use other approved business systems. I will not use routine app messaging or email to send medical records, highly sensitive health details, payment credentials, or emergency communications. If I believe I am experiencing an emergency, I will contact emergency services rather than Momentum Wellness messaging.

9. Governing Law and Severability

This Agreement is intended to be governed by the laws of the State of New Mexico. If a provision is found unenforceable, the remaining provisions are intended to remain effective to the extent permitted by law. Legal counsel must confirm this language and any required venue, notice, or dispute terms before use.

10. Acknowledgment and Electronic Signature

I have read this Agreement, understand it, and have had the opportunity to ask questions before signing. I understand that I am giving up certain legal rights. I sign voluntarily and confirm that the information I provided is accurate to the best of my knowledge.

If signed electronically, I consent to use an electronic signature and intend it to have the same effect as my handwritten signature, subject to applicable law and the approved e-signature process.

Signatures

Participant printed name	
Participant signature	
Date signed	
Email used for electronic signature	

Internal completion check: Attorney approval recorded [] Business details completed [] Approved e-signature method configured [] Signed copy stored in a restricted business system []